

Brief for a Saudi IP Lawyer — Fly GACA (PO-1 & PO-2)

SECTION 02-legal TYPE brief STATUS **active** OWNER Founder UPDATED 2026-06-16

Prepared by: Captain Adel Al-Subaie — founder, Fly GACA **Date:** 23 May 2026 **Subject:** Two intellectual-property questions blocking launch — (1) the right to redistribute and index official Saudi aviation publications, and (2) the legality and protectability of the name "Fly GACA".

How to use this brief

This document is written **for a Saudi-qualified intellectual-property lawyer**. It describes a project, sets out two specific legal questions that are blocking its first public launch, summarises our own desk research on each, and lists the precise points on which we need a professional opinion.

Everything in the "Our understanding" sections below is **non-lawyer desk research**. It is **not** relied upon as legal advice and may be wrong — please correct it. We would value a **written opinion** addressing the numbered questions in sections 4 and 5. The two questions are closely related and we would like them handled together, with a fee estimate.

1. About Fly GACA

Fly GACA is an educational digital platform and reference library for Saudi civil aviation. Its purpose is to help pilots, flight instructors, cadets and operators in the Kingdom study and stay current. It does two things:

- A **free, searchable online library** of Saudi aviation regulations and related official material.
- A **paid AI study assistant** ("Captain Adel") that answers aviation questions and cites its sources, intended for individual subscribers and, on a B2B basis, for flight schools buying access for cadets.

Two characteristics matter for this brief:

- **It is explicitly unofficial.** Fly GACA is not affiliated with, endorsed by, or connected to the General Authority of Civil Aviation ("GACA"). Every page is intended to carry a prominent disclaimer to that effect, stating that the authoritative source for any regulation is always GACA, and that users must verify against the latest official GACA publication. The platform is positioned as an **educational study aid**, never as an operational or official source.
- **It is a commercial venture.** There will be paid subscriptions and business sales to flight schools. This matters because some permissions that exist for personal or non-commercial

use may not extend to a commercial service.

The platform is built and run by a single founder. It is not yet launched.

2. What we plan to build, and why these two questions block it

The first public release is the library and search only — no accounts, no AI. The AI assistant follows in a later phase. To ship either, we must resolve two things:

1. **Content rights.** The library is only useful if it contains the actual regulatory texts. We need to know whether we may **host copies** of certain official Saudi aviation documents on our own commercial website, or whether we must instead **link** to GACA's own copies.
2. **The name.** The platform is currently branded "Fly GACA", on the domain `flygaca.com`. The name deliberately signals the subject matter (GACA regulations), but "GACA" is the designation of a Saudi government authority, and we need to know whether using it as a brand is lawful and whether it can be protected.

A wrong answer on either is costly: the new Copyright Law raises the maximum fine for infringement to SAR 1,000,000, and a name problem discovered after launch would mean a rebrand. We would rather get clear advice now.

3. The content corpus — what we propose to use, in three tiers

We have already classified the material we want to use into three tiers. We set this out so you can see exactly what we are and are not proposing to do.

Tier A — Official GACA publications we propose to HOST (full copies):

- **GACAR** — the General Authority of Civil Aviation Regulations, issued by GACA across many "parts". These are regulations of a government authority.
- The **Saudi AIP** — the Aeronautical Information Publication for Saudi Arabia, an official State publication. (Note: the AIP changes every 28-day AIRAC cycle; every AIP-sourced item we display would carry an effective date and a clear "not for operational use — verify the current AIP and NOTAMs" notice.)
- **GACA advisory circulars** and similar official guidance published by GACA.

Tier B — Our own original material we will HOST (no third-party rights issue):

- Fly GACA's own training notes, explanations and exam questions, authored by us. We will not scrape or reuse third-party question banks or commercial study material.

Tier C — Third-party material we will NOT host — cite and link only:

- **ICAO Annexes and SARPs** (copyright of ICAO).
- **Aircraft manuals** — POH / AFM (copyright of the aircraft manufacturers).

- For these, the assistant would only cite them and point the user to the official source; it would never reproduce them and never present itself as a substitute for a POH/AFM.

Questions 1 and 2 below concern Tier A. Tier C is addressed in question 1(g) because of the new AI exception.

4. Question 1 — May we redistribute and index official Saudi aviation publications?

Our understanding (desk research — please verify or correct)

- The **current Copyright Law** (Royal Decree No. M/41, 2003) excludes from copyright protection "laws, judicial judgments, decisions of administrative bodies, international agreements and other official documents, and their official translations."
- The **new Copyright Law** (approved by the Council of Ministers on 27 January 2026, published in Umm Al-Qura on 13 February 2026, in force ~12 August 2026, i.e. 180 days after publication) **retains** this exclusion — it expressly excludes official regulations and official (legislative, administrative and judicial) texts from protection.
- On that basis, our **provisional** reading is that **GACAR parts** — being regulations of a government authority — fall inside the exclusion and are not protected by copyright, so rehosting them would not require a licence at all. We are **less certain** about the **AIP** and **advisory circulars**: they are official GACA publications and most likely fall under the same exclusion, but we want this confirmed.
- We understand **GACA's website terms of use** permit downloading content for "personal and/or non-commercial use" only. Our reading is that, because the underlying documents are excluded from copyright, those site terms do not control whether we may host the texts — but a contractual-terms argument may be raised against us and we want your view.
- The new law also adds an **AI exception** permitting reproduction of *lawfully published* works to develop AI products and algorithms, subject to three conditions (lawful publication; lawful acquisition of the copy; copying limited to what is necessary for the purpose). Its scope — in particular whether it covers **commercial** AI products — awaits SAIP's implementing regulations.

The questions

Please advise, addressing both the current 2003 law and the incoming 2026 law:

- a. Does the exclusion of official documents / official regulations from copyright cover **GACAR parts**, such that Fly GACA may host full, searchable copies of them on a **commercial** website without a licence?
- b. Does the same exclusion cover the **Saudi AIP** and **GACA advisory circulars**? If their treatment differs from GACAR, please explain how.

- c. If a document is excluded from copyright, can GACA nevertheless restrict our hosting of it through its **website terms of use** (personal/non-commercial use only)? Does the act of downloading from `gaca.gov.sa` bind us to those terms, and would obtaining the same texts from another source change the analysis?
- d. Are there **non-copyright restrictions** that could still prevent or limit rehosting — for example: GACA **trademarks, logos or emblems** appearing within the documents; any **database / compilation right** in GACA's collection or arrangement of the material; sector-specific rules on reproducing or representing official aviation information; or any rule against creating a misleading impression of officiality?
- e. For the **AIP** specifically: are there rules — under Saudi law or the ICAO Annex 15 framework as applied by GACA — that restrict reproduction of AIP content by a third party, beyond copyright? Are our proposed effective-date and "not for operational use" notices sufficient, or is more required?
- f. What is the **safest interim posture**? We are willing to launch the first version as a **deep-linking index** that points users to GACA's own copies, rather than hosting the texts, until we have your clearance. Do you agree this interim approach carries negligible risk?
- g. **AI exception**: does the new Article-26 AI exception apply to a **commercial** AI assistant such as Captain Adel? Does it assist us with **Tier C** material (ICAO Annexes/SARPs and aircraft manuals) if we only ingest them for retrieval and citation and never reproduce them to users? How should we interpret "lawfully acquired copy" and "limited to what is necessary" for a retrieval-augmented-generation pipeline that stores text chunks and vector embeddings?
- h. Would you recommend we seek **written clarification or a no-objection from GACA** itself (e.g. its Data Management Office) — and if so, is that advisable before launch or unnecessary given the copyright-exclusion analysis?
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5. Question 2 — Can we lawfully use, and protect, the name "Fly GACA"?

Our understanding (desk research — please verify or correct)

- Saudi trademark law prohibits registering marks that consist of public slogans, flags, symbols or **names/designations specific to the Kingdom**, and **official Saudi marks** unless authorised by the entity that owns them; SAIP may also refuse marks with **misleading components** or that imply official endorsement.
- "GACA" is the well-known designation of a Saudi government authority. Our provisional reading is therefore that **"Fly GACA" may be unregistrable** as a trademark at SAIP, and that even **unregistered use** could carry passing-off / misrepresentation exposure because the name leans on the authority's identity.
- We understand a **disclaimer** of official status reduces confusion but does not, by itself, cure a name that is misleading overall.

- We see three possible paths and would like your recommendation: (1) keep "Fly GACA", accept it may be unregistrable, and mitigate with prominent disclaimers; (2) keep "Fly GACA" only as a **descriptive tagline** and register a **different** primary mark; (3) **rebrand** the primary name to one that does not contain "GACA".

The questions

- a. Can "**Fly GACA**" be registered as a trademark at SAIP, given the prohibitions above? If not, please identify the specific ground(s) of refusal.
- b. Independent of registrability, what is the risk of **using** "Fly GACA" as an unregistered brand for a commercial educational service — e.g. passing off, misrepresentation, an objection or enforcement action by GACA, or SAIP/regulatory action? How would you rate that risk?
- c. Does a **prominent, repeated disclaimer** of non-affiliation and unofficial status **materially reduce** that risk? Is it ever sufficient on its own?
- d. Of the **three paths** above, which do you advise, and why? If you advise rebranding or demoting the name, are there constraints we should respect when choosing a new name (for example, descriptive use of "GACAR" or "GACA regulations" in marketing copy or page text, as opposed to in the brand itself)?
- e. Is **descriptive / nominative use** of "GACA" and "GACAR" — e.g. "a free library of GACAR regulations" — treated differently from use of "GACA" **in the brand name**? We would like to keep referring to the regulations by their actual name even if the brand changes.
- f. Could GACA assert rights over "**GACA**" **as such** (as an acronym or authority designation) against us, independent of any trademark registration?
- g. "**Captain Adel**" is the brand for our AI assistant. It is also the founder's real title and name (Captain Adel Al-Subaie). Is "Captain Adel" registrable as a trademark, and do you see any conflict or obstacle? Please flag if a clearance search is advised.
- h. **Domain names:** we own and use `flygaca.com`. (1) Is there any legal risk in continuing to use a domain that contains "gaca"? (2) We may later want `flygaca.sa`; we understand a `.sa` domain requires a Saudi entity with a Commercial Registration, and that SaudiNIC reviews the relationship between the name and the registrant — is a `.sa` containing "gaca" likely to be refused? (3) We have registered `captadel.com` for the "Captain Adel" brand — please flag any issue with using it.

6. Constraints, preferences and our risk posture

- We are **risk-averse** and would rather delay or adjust than launch on a doubtful footing. A conservative recommendation is welcome.
- We are willing to **launch the library as a deep-link index** (not hosting the texts) as a zero-risk interim measure pending your advice on question 1.
- The platform's **educational, unofficial positioning** is fixed and non-negotiable; we will reinforce it on every surface.

- The project also handles personal data and must comply with the Saudi **PDPL**; data is hosted in the Kingdom. PDPL advice is **not** sought in this brief, but please flag if anything in questions 1–2 interacts with it.
 - We will shortly register a **Saudi legal entity**; the entity's name depends on your advice in question 2, so that step is paused pending this opinion.
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7. What we would like from you

1. A **written opinion** addressing the numbered questions in sections 4 and 5, with a clear bottom-line recommendation on (a) host vs. deep-link for the library, and (b) which of the three name paths to take.
 2. A **fee estimate** for that opinion, ideally fixed-fee.
 3. A note of any **conflict of interest** — in particular, whether your firm acts for GACA or related government bodies.
 4. An indication of whether any question needs to wait for **SAIP's implementing regulations** to the 2026 Copyright Law, and if so, what we can safely do in the meantime.
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8. References (our desk research — for your convenience, not authority)

- Saudi Copyright Law, Royal Decree M/41 (2003) — WIPO Lex: <https://www.wipo.int/wipolex/en/legislation/details/3593>
 - Saudi Arabia Copyright Law 2026, key changes — Gowling WLG (with AlGhazzawi & Partners): <https://gowlingwlg.com/en/insights-resources/articles/2026/saudi-arabia-copyright-law-2026>
 - Saudi Arabia's new Copyright Law — A&O Shearman: <https://www.aoshearman.com/en/insights/saudi-arabias-new-copyright-law-key-changes-and-implications>
 - Saudi Arabia issues new Copyright Law — CWB: <https://cwbip.com/insights/news/2026/saudi-arabia-issues-new-copyright-law-key-provisions-and-practical-implications>
 - Law of Trademarks — Saudipedia: <https://saudipedia.com/en/article/2612/government-and-politics/systems/law-of-trademarks>
 - Saudi domain name registration regulations — SaudiNIC: <https://help.nic.sa/en/regulation/>
 - GACA official site: <https://gaca.gov.sa/en/>
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This brief was prepared with research assistance and is not itself legal advice. It is intended to help a Saudi IP lawyer give a focused opinion efficiently.